

#	Case Name	Tentative
1	24-01431292 Arroyo vs. Swift Debt Relief, Inc.	1) Motion to Compel Production 2) Motion to Compel Production MOTION NO. 1: Plaintiff Brenda Arroyo’s motion to compel defendant Mark Photoglou to provide supplemental responses and all documents responsive to Plaintiff’s Requests for Production, Set One, Request Nos. 2-11 is CONTINUED to _____. The rule requiring a good faith effort to meet and confer about discovery disputes “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.) “A reasonable and good-faith attempt at informal resolution entails something more than bickering . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (<i>Townsend v. Superior Court</i> (1998) 61 Cal. App. 4th 1431, 1439.) In its opposition, Defendant states “[t]he parties can resolve their disputes if Plaintiff’s counsel were to work with Defendants’ counsel to reach an agreement about the scope of the Requests and definition.” (Opp., 4:22-24.) Defendant’s counsel states during a meet and confer call, he explained to Plaintiff’s counsel that he believed the requests were improperly overbroad and that it made more sense for the parties to stipulate to certain definitions or to certain keywords and/or phrases that could assist with the identification of responsive documents. (Bozant Decl., ¶ 9.) Plaintiff’s counsel refused to agree to any such compromise, and instead told Defendant’s counsel that Defendants “should know” exactly what the requests mean based on the allegations in the complaint and the purportedly limited time period Plaintiff worked for Swift. (Bozant Decl., ¶ 9.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties’ attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party’s position on the discovery request that remains in dispute. Plaintiff to give notice. MOTION NO. 2: Plaintiff Brenda Arroyo’s motion to compel defendant Jason DeAngelo to provide supplemental response and all documents responsive to Plaintiff’s Requests for Production, Set One, Request Nos. 3–11 is CONTINUED to _____.

		In its opposition, Defendant states “[t]he parties can resolve their disputes if Plaintiff’s counsel were to work with DeAngelo’s counsel to reach an agreement about the scope of the Requests and definition. Plaintiff’s counsel’s blatant refusal to make any concessions, as well as their personal attacks against DeAngelo, have thwarted the parties’ meet and confer efforts.” (Opp., 4:19-22.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties’ attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party’s position on the discovery request that remains in dispute. Plaintiff to give notice.
2	21-01199592 <i>Burgos vs. Degiacomo</i>	Motion for Equitable Relief Plaintiff Glenda Burgos’s Motion for Equitable Relief is DENIED. Plaintiff, in pro per, moves for an order granting equitable relief and restoration of her appellate rights based on extrinsic mistake alleging attorney abandonment. Plaintiff’s prior counsel timely filed notices of appeal of this court’s initial judgment and the amended judgement that added Defendant’s fees and costs. (Dreyfuss Decl., ¶¶ 3-4; ROA 208, 246.) However, on 6/4/25 and 7/17/25, the appellate court issued a remittitur for each appeal after dismissing them for failure to file opening briefs. (Dreyfuss Decl., ¶¶ 9, 12, 15-16, Ex. 1; ROA 277, 278.) Plaintiff, in pro per, filed a motion to recall each remittitur, which Defendant opposed. (Dreyfuss Decl., ¶¶ 13, 17-20, 22-25, Exs. 3-6, 8-11.) The court of appeal denied each motion on 7/10/25 and on 8/7/25. (Dreyfuss Decl., ¶¶ 21, 26, Exs. 7, 12.) Plaintiff filed petitions for review with the California Supreme Court, which were denied on 7/16/25, 10/15/25. (Dreyfuss Decl. iso Motion for Attorney Fees on Appeal ¶¶ 6-7.) Plaintiff, in pro per, filed the instant motion on 12/23/25. However, this court does not have jurisdiction to grant the relief Plaintiff seeks. Plaintiff’s recourse was to file the appropriate motion(s) with the appellate court, which she did in part. More specifically, since Plaintiff sought relief after dismissal and issuance of the remittiturs, her final recourse was to file a motion with the appellate court to vacate the dismissals and permit a cure of the default. (<i>In re Jacqueline H.</i> (1978) 21 Cal.3d 170, 179; <i>Sanders v. Warden</i> (1951) 106 Cal.App.2d 707, 708; see also Eisenberg et al., Cal. Practice Guide: Civil Appeals & Writs (The Rutter Group) ¶¶ 5:50-5:51, p. 5-B.) Further, since issuance of the remittiturs deprived the appellate court of further jurisdiction, the motion to vacate should have been